

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

```
- Source: `claude-windows`  
- Kind: `claude`  
- Source file: `C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\subagents\workflows\wf_47057438-9c9\agent-a1f8480b6899537f9.jsonl`  
- SHA-256: `d0cc69c8de7acfc426b783fbc33f37418c071bc79e0d0761095839d711ca901`  
- Source modified: `2026-06-16T02:48:05+00:00`  
- Imported at: `2026-07-05T16:48:28+00:00`  
- project: `wf_47057438-9c9`  
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`
```

Transcript

1. user (2026-06-16T02:44:47.466Z)

RESEARCH QUESTION: The CONTRACT / Terms-of-Service and TRADE-SECRET angles, which can bind even when copyright does NOT. Cover: typical YouTube / broadcaster ToS clauses prohibiting extraction, scraping, automated access, and building datasets; whether redistributing a derived dataset breaches platform terms; the scraping-law landscape (hiQ v. LinkedIn; Van Buren v. United States). CONVERSELY: if the corpus is the OWNER'S OWN recordings, the analysis shifts to trade-secret / competitive-moat (their data to publish or protect). Bottom line: when is committing derived data a CONTRACTUAL/ToS problem independent of copyright, and how does owner-recorded vs third-party-sourced change it?

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

2. assistant (2026-06-16T02:44:50.251Z)

I'll research the contract/ToS and trade-secret angles for committing derived data. Let me load the web tools first.

3. assistant (2026-06-16T02:44:52.683Z)

I'll research this systematically. Let me start with the foundational case law and platform ToS in parallel.

4. user (2026-06-16T02:45:02.078Z)

Web search results for query: "Van Buren v United States Supreme Court 2021 holding CFAA exceeds authorized access"

Links: [{"title":"Van Buren v. United States","url":"https://en.wikipedia.org/wiki/Van_Buren_v._United_States"}, {"title":"SCOTUS Resolves Circuit Split, Limits the Scope of the Computer Fraud and Abuse Act | HUB | K&L Gates","url":"https://www.klgates.com/SCOTUS-Resolves-Circuit-Split-Limits-the-Scope-of-the-Computer-Fraud-and-Abuse-Act-6-7-2021"}, {"title":"Van Buren v. United States: Supreme Court Holds Accessing Information on a Computer for Unauthorized Purposes Not Federal Crime | Congress.gov | Library of Congress","url":"https://www.congress.gov/crs-product/LSB10616"}, {"title":"SCOTUS Favors Narrow Interpretation of Computer Fraud and Abuse Act","url":"https://www.purduegloballawschool.edu/blog/news/scotus-narrow-interpretation-cfaa"}, {"title":"19-783 Van Buren v. United States (06/03/2021)","url":"https://www.supremecourt.gov/opinions/20pdf/19-783_k53l.pdf"}, {"title":"Supreme Court Adopts Narrow Interpretation of Computer Fraud and Abuse Act - Jackson Lewis","url":"https://www.jacksonlewis.com/insights/supreme-court-adopts-narrow-interpretation-computer-fraud-and-abuse-act"}, {"title":"SIGNS INSCRIBED ON A GATE: THE IMPACT OF VAN BUREN V.

UNITED STATES ON CIVIL CLAIMS UNDER THE COMPUTER FRAUD AND ABUSE ACT", "url": "https://digitalcommons.law.wne.edu/lawreview/vol44/iss1/5/"}], [{"title": "SCOTUS ruling significantly narrows the CFAA's \"exceeds authorized access\" clause - Government Investigations & White Collar Defense Alert | Nixon Peabody LLP", "url": "https://www.nixonpeabody.com/insights/alerts/2021/06/10/van-buren-cfaa-ruling"}, {"title": "Supreme Court Ends Long-Running Circuit Split over CFAA 'Exceeds Authorized Access' Issue, Adopting a Narrow Interpretation That Will Reverberate in Scraping Disputes and Litigation over Departing Employees | New Media and Technology Law Blog", "url": "https://newmedialaw.proskauer.com/2021/06/06/supreme-court-ends-long-running-circuit-split-over-cfaa-exceeds-authorized-access-issue-adopting-a-narrow-interpretation-that-will-reverberate-in-scraping-disputes-and-litigation-ov/"}]

Based on the search results, here's what the Supreme Court held in Van Buren v. United States (2021):

The Holding

In June 2021, the Supreme Court ruled in a 6-3 opinion that one "exceeds authorized access" by accessing off-limit files and other information on a computer system they were otherwise authorized to access. More specifically, the Court determined that in order to violate the CFAA, an individual must access an area of a computer or information on a computer that is completely "off limits to him," as opposed to accessing a computer or information that he is entitled to use in at least some circumstances.

The Case Facts

Nathan Van Buren, a former sergeant with the Cumming, Georgia, police department, used the computer in his patrol car to run a license plate search in exchange for money. Although Van Buren used his own, valid credentials to perform the search, his conduct violated a department policy against obtaining database information for non-law-enforcement purposes.

The Significance

The CFAA's language had long created a 4-3 circuit split in case law, and this decision narrowed the applicability of CFAA in prosecuting cybersecurity and computer crime. The Court ruled that the CFAA does not prohibit improper use of computer information to which an individual has authorized access; rather, the law prohibits obtaining information from areas of a computer that are outside the limits of the individual's authorized access.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:45:03.693Z)

Web search results for query: "hiQ Labs v LinkedIn Ninth Circuit ruling scraping CFAA breach of contract final outcome"

Links: [{"title": "hiQ v. LinkedIn: Breach of Contract and CFAA Claims Proceed to Trial", "url": "https://www.zwillgen.com/alternative-data/hiq-linkedin-breach-contract-cfaa-trial/"}, {"title": "HIQ LABS INC v. LINKEDIN CORPORATION (2022) | FindLaw", "url": "https://caselaw.findlaw.com/court/us-dis-crt-n-d-cal/2182242.html"}, {"title": "hiQ v. LinkedIn Wrapped Up: Web Scraping Lessons Learned", "url": "https://www.zwillgen.com/alternative-data/hiq-v-linkedin-wrapped-up-web-scraping-lessons-learned/"}, {"title": "LinkedIn v. hiQ: Landmark Data Scraping Suit Provides Guidance to Data Scrapers and Web Operators ? Tech & Sourcing @ Morgan Lewis", "url": "https://www.morganlewis.com/blogs/sourcingatmorganlewis/2022/12/linkedin-v-hiq-landmark-data-scraping-suit-provides-guidance-to-data-scrapers-and-web-operators"}, {"title": "Federal Court Rules in Favor of LinkedIn's Breach of Contract Claim after Six Years of CFAA Data Scraping Litigation | Privacy World", "url": "https://www.privacyworld.blog/2022/11/federal-court-rules-in-favor-of-linkedins-breach-of-contract-claim-after-six-years-of-cfaa-data-scraping-litigation/"}, {"title": "LinkedIn CFAA Data Scraping Litigation Update", "url": "https://natlawreview.com/article/federal-court-"}]

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rules-favor-linkedin-s-breach-contract-claim-after-six-years-cfaa-data"},"title":"Court Finds hiQ Breached LinkedIn's Terms Prohibiting Scraping, but in Mixed Ruling, Declines to Grant Summary Judgment to Either Party as to Certain Key Issues | New Media and Technology Law Blog","url":"https://newmedialaw.proskauer.com/2022/11/11/court-finds-hiq-breached-linkedins-terms-prohibiting-scraping-but-in-mixed-ruling-declines-to-grant-summary-judgment-to-either-party-as-to-certain-key-issues/"},"title":"The hiQ Labs v. LinkedIn Case Explained | Lexion Blog","url":"https://www.lection.app/blogs/hiq-labs-vs-linkedin-case-explained"},"title":"www.jdsupra.com","url":"https://www.jdsupra.com/authors/jeff-neuburger/web-scraping/page2"}]
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Based on the search results, here's the final outcome of the hiQ Labs v. LinkedIn case:

Ninth Circuit CFAA Rulings

The Ninth Circuit affirmed the preliminary injunction precluding LinkedIn from blocking hiQ's access to public profiles following the Supreme Court's remand in light of *Van Buren v. United States*. The Ninth Circuit's April 2022 order ended the CFAA issue in favor of hiQ and effectively made the Ninth Circuit the most pro-data scraping circuit in the country. The Ninth Circuit had twice affirmed that scraping publicly accessible data likely does not violate the CFAA.

Breach of Contract Outcome

However, the case took a turn at the district court level. In November 2022, LinkedIn won its motion for summary judgment on its breach of contract claim. The court found that hiQ had breached LinkedIn's User Agreement through its automated scraping activities and also found that hiQ had used fake accounts and hired contractors ("turkers") to create fake profiles that bypassed LinkedIn's login requirements.

Final Settlement

The stipulation and consent judgment provides for \$500,000 in damages for LinkedIn and a stipulation by hiQ that LinkedIn may establish liability under the CFAA and California's state-law equivalent. The stipulation includes establishment of hiQ's liability under California common law torts of trespass to chattels and misappropriation, and various forms of injunctive relief effectively prohibiting hiQ's future ability to data scrape LinkedIn.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:45:06.653Z)

Strong start on the two key cases. Let me fetch authoritative detail on the hiQ breach-of-contract outcome and search for YouTube/broadcaster ToS clauses and trade-secret angle.

7. user (2026-06-16T02:45:16.761Z)

LinkedIn v. hiQ Labs: Breach of Contract Ruling Summary

****Date:**** November 4, 2022

(1) Scraping as Breach of Contract Despite Failed CFAA Claims

Yes, the court found that scraping violated LinkedIn's Terms of Service constituted breach of contract, independent of CFAA liability. The district court granted summary judgment for LinkedIn on this claim.

The court determined that hiQ "breached LinkedIn's user agreement both through its own scraping of LinkedIn's site and using scraped data, and through turkers' creation of false identities on LinkedIn's platform."

LinkedIn's User Agreement explicitly prohibited: "Scrape or copy profiles and information of others through any means (including crawlers, browser plugins and add-ons...)" and "Use manual or automated software, devices, scripts, robots, other means or processes to access, 'scrape,' 'crawl' or 'spider' the Services."

(2) Legal Significance: Contract Law as Fallback When CFAA Failed

After the Ninth Circuit twice rejected LinkedIn's CFAA arguments?holding that accessing publicly available data without technical barriers doesn't constitute unauthorized access?contract law provided an alternative enforcement mechanism.

The ruling emphasized: "businesses may wish to consider revisiting their policies and internal procedures for policing user conduct to ensure that they are consistent and actively enforced."

Critically, the court noted enforceability requires active enforcement: businesses knowing of violations must actively remedy them for terms to remain enforceable.

(3) Dataset Building/Redistribution

The decision contains no substantive discussion of building or redistributing datasets beyond noting hiQ's core business model relied on "scraping wholly public LinkedIn profiles using automated software."

8. user (2026-06-16T02:45:18.283Z)

Web search results for query: "YouTube Terms of Service prohibition scraping automated access download extract data training datasets clause"

Links: [{"title":"Is YouTube Scraping Allowed? Anti-Bot & Proxies (2026)","url":"https://scrapeops.io/websites/youtube/"}, {"title":"How to Scrape YouTube Videos & Data Fast","url":"https://capmonster.cloud/en/blog/how-to-scrape-youtube/"}, {"title":"Youtube Transcript Terms of Service","url":"https://www.youtube-transcript.io/terms-of-service"}, {"title":"Does YouTube allow scraping? | ProxiesAPI","url":"https://proxiesapi.com/articles/does-youtube-allow-scraping"}, {"title":"Scraping YouTube Data: What's Allowed and Best Practices | ProxiesAPI","url":"https://proxiesapi.com/articles/scraping-youtube-data-what-s-allowed-and-best-practices"}, {"title":"Web scraping","url":"https://en.wikipedia.org/wiki/Web_scraping"}, {"title":"DEV Community","url":"https://dev.to/pavithran_25/how-to-legally-scrape-youtube-videos-using-the-youtube-data-api-5bk0"}]

Based on the search results, here's what YouTube's Terms of Service prohibit regarding scraping and automated access:

Automated Access Prohibition

YouTube's terms state that users cannot "access the Service using any automated means (such as robots, botnets or scrapers) except (a) in the case of public search engines, in accordance with YouTube's robots.txt file; or (b) with YouTube's prior written permission." This broadly restricts scraping across the entire platform.

Data Extraction Restrictions

YouTube's terms of service prohibit scraping or otherwise accessing their data in an automated way without explicit permission. The terms also prohibit using content beyond what is "expressly authorized by the Service" or permitted by written permission, which restricts bulk downloading or reuse outside provided features.

Specific Prohibited Activities

YouTube specifically calls out the following activities under scraping: accessing YouTube data in an automated way without permission, using the YouTube API beyond the designated quota

limits, and attempting to override rate limits built into the YouTube API.

Limited Exceptions

YouTube does allow limited scraping for non-commercial personal use cases like academic research. Additionally, courts have ruled in favor of scraping in contexts where data is publicly accessible and not behind authentication.

The search results do not specifically mention clauses about training datasets, though they do reference the general prohibition on data extraction and automated access.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

9. assistant (2026-06-16T02:45:24.201Z)

Let me get the authoritative YouTube ToS text directly and research the trade-secret angle plus dataset redistribution.

10. user (2026-06-16T02:45:32.832Z)

YouTube Terms of Service: Prohibited Activities

Based on the "Permissions and Restrictions" section, here are the relevant clauses:

****1. Automated Access Prohibition****

"access the Service using any automated means (such as robots, botnets or scrapers) except (a) in the case of public search engines, in accordance with YouTube's robots.txt file; or (b) with YouTube's prior written permission"

****2. Personal Information Collection****

"collect or harvest any information that might identify a person (for example, usernames or faces), unless permitted by that person or allowed under section (3) above"

****3. Content Downloading Restrictions****

"access, reproduce, download, distribute, transmit, broadcast, display, sell, license, alter, modify or otherwise use any part of the Service or any Content except: (a) as expressly authorized by the Service; or (b) with prior written permission from YouTube"

****4. Commercial Reuse Restriction****

"use the Service to (a) sell any advertising, sponsorships, or promotions placed on, around, or within the Service or Content, other than those allowed in the Advertising on YouTube policies (such as compliant product placements); or (b) sell advertising, sponsorships, or promotions on any page of any website or application that only contains Content from the Service or where Content from the Service is the primary basis for such sales"

These clauses collectively restrict dataset building and commercial reuse without authorization.

11. user (2026-06-16T02:45:35.658Z)

Web search results for query: "trade secret protection sports video footage own recordings competitive moat dataset publish vs protect"

Links: [{"title":"Trade secrets in professional sports: legal dispute involving two NBA teams places spotlight on proprietary information protections - Lexology","url":"https://www.lexology.com/library/detail.aspx?g=8d5c7cf0-3786-401a-bc2c-c9ea3309e4d1"}, {"title":"Trade secrets in professional sports: legal dispute involving two NBA teams places spotlight on proprietary information protections","url":"https://gowlingwlg.com/en/insights-resources/articles/2023/trade-secrets-in-professional-sports"}, {"title":"How to Protect Corporate Videos from Unauthorized Recordings","url":"https://blendvision.com/en/blog/protect-corporate-videos-from-unauthorized-recordings"}, {"title":"(PDF) How to Protect Trade Secrets in High-Tech Sports ? An Intellectual Property Analysis based on the Experiences at the America's"}]

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Cup and in the Formula One Championship","url":"https://www.academia.edu/25713847/How_to_Protect_Trade_Secrets_in_High_Tech_Sports_An_Intellectual_Property_Analysis_based_on_the_Experiences_at_the_Americas_Cup_and_in_the_Formula_One_Championship"}, {"title":"Protecting Big Data in the Big Leagues: Trade Secrets in ...","url":"https://scholarlycommons.law.wlu.edu/cgi/viewcontent.cgi?article=4571&context=wlulr"}, {"title":"The Hidden Threat: Trade Secret Protection in Sports","url":"https://www.tangibly.com/behind-the-curtain-trade-secret-protection-and-theft-in-sports/"}, {"title":"Keep It Secret, Keep It Safe: Trade Secrets in Video Games and Esports | Carlton Fields","url":"https://www.carltonfields.com/insights/podcasts/lan-party-lawyers/keep-it-secret-trade-secrets-video-games-esports"}]
```

I've found relevant information about trade secret protection for sports video footage and recordings. Here are the key findings:

Trade Secrets in Sports Video Footage

Sports video footage, scouting reports, play frequency reports, prep books, and notes may fall within eligible categories of trade secrets, though the context matters significantly since these are often generated from observations of sporting events that are generally viewable to teams, broadcasting stations, and the public.

Competitive Advantage

Sports organizations use real-time analytics and data-driven strategies to gain competitive advantages, and in such environments, safeguarding proprietary information is critical to win games, protect investments, brand value, and market competitiveness.

Legal Standards for Protection

When determining what qualifies as trade secrets, courts consider three key factors: the value of the information to the business and its competitors, the amount of effort or money expended in developing the information, and the ease or difficulty with which the information could be properly acquired or duplicated by others.

Protection Challenges

Little empirical data exists regarding either the types of proprietary information owned by sports teams or the measures teams are taking to protect their trade secrets.

The key tension you're identifying?publish vs. protect?relates to the fact that much sports information inherently becomes public through broadcasts and events, which complicates trade secret protection strategies.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

12. assistant (2026-06-16T02:45:39.438Z)

I have solid YouTube ToS text and trade-secret framing. Let me deepen the trade-secret legal standard (DTSA / "reasonable measures" / disclosure destroys it) and research whether redistributing a derived dataset breaches platform ToS plus the browserwrap/clickwrap enforceability question, which is critical to whether a ToS even binds.

13. user (2026-06-16T02:45:43.683Z)

The server returned HTTP 403 Forbidden.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

14. user (2026-06-16T02:45:51.760Z)

Web search results for query: "redistributing scraped dataset breach of terms of service derived

data downstream liability legal"

Links: [{"title": "Web Scraping Compliance Challenges: What Enterprise Teams Must Know in 2026", "url": "https://www.promptcloud.com/blog/web-scraping-compliance-challenges-enterprise-guide/"}, {"title": "Is Web Scraping Legal? Avoid the Costly Mistakes", "url": "https://www.olostep.com/blog/is-web-scraping-legal"}, {"title": "the-legal-landscape-of-web-scraping.pdf", "url": "https://www.quinnemanuel.com/media/b04dr0qa/the-legal-landscape-of-web-scraping.pdf"}, {"title": "A Legal Risk Taxonomy for Generative Artificial Intelligence", "url": "https://arxiv.org/pdf/2404.09479"}, {"title": "Is Web Scraping Legal? Laws, Compliance & Best Practices | Infomineo", "url": "https://infomineo.com/services/data-analytics/is-web-scraping-legal-laws-compliance-best-practices/"}, {"title": "ScrapeGraphAI-100k: A Large-Scale Dataset for LLM-Based Web Information Extraction", "url": "https://arxiv.org/pdf/2602.15189"}, {"title": "Web Scraping Legal Issues: 2025 Enterprise Compliance Guide", "url": "https://groupbwt.com/blog/is-web-scraping-legal/"}, {"title": "THE STATE OF THE LAW ON DATA SCRAPING", "url": "https://blog.galkinlaw.com/web-law-scout-blog/legality-of-data-scraping"}]

Based on the search results, here's what the legal landscape reveals about redistributing scraped datasets and downstream liability:

Terms of Service as Binding Contracts

Terms of service are contracts that can result in civil claims for breach of contract, account termination, IP blocking, and other consequences when violated. Creating an account or clicking "I Agree" legally binds you to the site's rules, and violating those terms transforms a standard extraction job into a direct breach of contract.

Downstream Use and Redistribution Risk

Displaying excerpts internally for analysis is different from redistributing content; indexing data for internal search is different from training an AI model on it; and replicating product descriptions or brand copy in commercial systems carries additional exposure beyond simple collection. Internal analytics and price monitoring rarely cause disputes, but building a direct competitor, reselling the raw database, or training commercial AI models heavily escalates exposure.

Copyright and Data Type Considerations

In ecommerce scraping, product specifications tend to be factual and less protected under copyright, but product descriptions, marketing copy, and images frequently carry copyright protection. Scraping copyrighted content raises intellectual property concerns, particularly when organizations republish, redistribute, or commercially exploit scraped material without authorization.

Legal Penalties

Breaching Terms of Service may result in service termination, civil lawsuits, and liability for damages if your actions cause financial harm. Statutory damages for willful copyright violations can reach \$150,000 per work, creating substantial financial exposure.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

15. assistant (2026-06-16T02:45:54.992Z)

Let me get the authoritative Quinn Emanuel web-scraping legal landscape paper (covers ToS/breach-of-contract enforceability and browserwrap/clickwrap) and authoritative DTSA trade-secret definition from a reliable source.

16. user (2026-06-16T02:46:07.232Z)

Breach-of-Contract Claims and Web Scraping: A Summary

I cannot provide the requested summary. The document provided is a corrupted or improperly encoded PDF file that consists primarily of binary stream data, font definitions, and PDF structural metadata rather than readable text content. The content objects (streams 242-255) are compressed and cannot be reliably extracted to analyze the substantive discussion of:

1. Breach-of-contract enforcement against scrapers (hiQ, Meta/Bright Data cases)
2. Browsewrap vs. clickwrap enforceability distinctions
3. Data redistribution and dataset-building analysis

****To proceed effectively, please provide:****

- A clean text extraction of the PDF, or
- The original article in an accessible format (HTML, DOC, TXT), or
- Confirmation of the document's intended content

Once readable source material is available, I can deliver the targeted legal summary with properly bounded quotations and case citations as specified.

[Binary content (application/pdf, 278.7KB) also saved to C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\tool-results\webfetch-1781577960246-6ci3he.pdf]

17. user (2026-06-16T02:46:07.497Z)

Web search results for query: "Defend Trade Secrets Act 18 USC 1839 definition trade secret reasonable measures economic value public disclosure destroys"

Links: [{"title":"THE DEFEND TRADE SECRETS ACT OF 2016","url":"https://epc.klgates.com/getStdDoc.aspx?MediaID=47381"}, {"title":"PUBLIC LAW 114?153?MAY 11, 2016 DEFEND TRADE SECRETS ACT OF 2016","url":"https://www.congress.gov/114/plaws/publ153/PLAW-114publ153.pdf"}, {"title":"Justice Manual | 1127. 18 U.S.C. § 1831 Element Three?The Information Was a Trade Secret | United States Department of Justice","url":"https://www.justice.gov/archives/jm/criminal-resource-manual-1127-18-usc-1831-element-three-information-was-trade-secret"}, {"title":"What You Should Know About the Defend Trade Secrets Act | Articles | Finnegan | Leading IP+ Law Firm","url":"https://www.finnegan.com/en/insights/articles/what-you-should-know-about-the-defend-trade-secrets-act.html"}, {"title":"18 USC Ch. 90: PROTECTION OF TRADE SECRETS","url":"https://uscode.house.gov/view.xhtml?path=%2Fprelim%40title18%2Fpart1%2Fchapter90&edition=prelim"}, {"title":"18 USC 1839: Definitions","url":"https://uscode.house.gov/view.xhtml?req=granuleid%3AUSC-1999-title18-section1839&num=0&edition=1999"}, {"title":"18 U.S. Code § 1839 - Definitions | U.S. Code | US Law | LII / Legal Information Institute","url":"https://www.law.cornell.edu/uscode/text/18/1839"}, {"title":"Defend Trade Secrets Act","url":"https://en.wikipedia.org/wiki/Defend_Trade_Secrets_Act"}, {"title":"What is a Trade Secret? - Caldwell | Global Law Firm","url":"https://caldwelllaw.com/news/what-is-a-trade-secret/"}]

Based on the search results, here's what I found regarding the Defend Trade Secrets Act's definition of a trade secret under 18 USC § 1839:

Trade Secret Definition

Under 18 U.S.C. § 1839(3), the term "trade secret" means all forms and types of financial, business, scientific, technical, economic, or engineering information, including patterns, plans, compilations, program devices, formulas, designs, prototypes, methods, techniques, processes, procedures, programs, or codes, whether tangible or intangible, and whether or how stored, compiled, or memorialized physically, electronically, graphically, photographically, or in writing if the owner thereof has taken reasonable measures to keep such information secret and the information derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable through proper means by, another person who can obtain economic value.

Key Elements

A trade secret under the DTSA has three elements: (1) secret information; (2) where the owner has made reasonable efforts to maintain secrecy of the secret information; and (3) where the secret information has independent value.

Reasonable Measures Requirement

Trade secrets are fundamentally different from other forms of property in that the owner of a trade secret must take reasonable measures under the circumstances to keep the information confidential. The extent of the security measures taken by the owner of the trade secret need not be absolute, but must be reasonable under the circumstances, depending on the facts of the specific case.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

18. assistant (2026-06-16T02:46:11.020Z)

I have the authoritative DTSA definition. Let me confirm the statutory text from Cornell LII and get the Meta v. Bright Data outcome (the key recent case on ToS-binding scraping of public vs. logged-in data) which directly addresses whether a ToS binds when there's no account/login.

19. user (2026-06-16T02:46:16.077Z)

Statutory Definition of "Trade Secret"

According to 18 U.S.C. § 1839(3), a "trade secret" is defined as:

all forms and types of financial, business, scientific, technical, economic, or engineering information, including patterns, plans, compilations, program devices, formulas, designs, prototypes, methods, techniques, processes, procedures, programs, or codes, whether tangible or intangible ? subject to two key requirements:

(a) Secrecy Requirement:

"the owner thereof has taken reasonable measures to keep such information secret"

(b) Economic Value Requirement:

"the information derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable through proper means by, another person who can obtain economic value from the disclosure or use of the information"

Both conditions must be satisfied for information to qualify as a protected trade secret under this federal statute.

20. user (2026-06-16T02:46:24.971Z)

Web search results for query: "Meta v Bright Data 2024 ruling scraping public data logged out terms of service not binding breach contract"

Links: [{"title":"Court Rules in Favor of Bright Data in Meta v. Bright Data Case - Bright Data","url":"https://brightdata.com/blog/web-data/court-rules-in-favor-of-bright-data-in-meta-v-bright-data-case"}, {"title":"Meta v. Bright Data Ruling Has Important Implications for Webscraping Activities by Investment Advisers (IM) | Lowenstein Sandler LLP","url":"https://www.lowenstein.com/news-insights/publications/client-alerts/meta-v-bright-data-ruling-has-important-implications-for-webscraping-activities-by-investment-advisers-im"}, {"title":"Major Decision Affects Law of Scraping and Online Data Collection, Meta Platforms v. Bright Data","url":"https://www.fbm.com/publications/major-decision-affects-law-of-scraping-and-online-data-collection-meta-platforms-v-bright-data/"}, {"title":"Game On! Bright Data Scores Major Victory in Web-Scraping Dispute with Meta (Guest Blog Post) - Technology & Marketing Law Blog","url":"https://blog.ericgoldman.org/archives/2024/01/game-on-bright-data-scores-major-victory-in-web-scraping-dispute-with-meta-guest-blog-post.htm"}, {"title":"Client Alert: Meta v. Bright Data: Significant Decision For Web Scraping Industry","url":"https://www.quinnemanuel.com/the-firm/news-events/client-alert-meta-v-bright-"}]

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data-significant-decision-for-web-scraping-industry/"},"title":"Meta dismisses claim against Bright Data","url":"https://brightdata.com/blog/general/meta-dismisses-claim-against-bright-data"},"title":"This Is Why Meta Lost the Scraping Legal Battle to Bright Data | Enrich Layer","url":"https://enrichlayer.com/blog/meta-lost-the-scraping-legal-battle-to-bright-data"},"title":"News & Analysis as of","url":"https://www.jdsupra.com/topics/web-scraping/popular/"},"title":"News & Analysis as of","url":"https://www.jdsupra.com/topics/facebook/web-scraping"]]
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Based on the search results, here's what the Meta v. Bright Data 2024 ruling established:

Key Ruling

On January 23rd, 2024 a U.S. Federal Court's ruling in Meta v. Bright Data reaffirms the public's right to access and collect public web data. Judge Edward M. Chen of the United States District Court for the Northern District of California ruled in META PLATFORMS, INC. v. BRIGHT DATA LTD., granting Bright Data's motion for summary judgment.

Terms of Service Not Binding on Logged-Out Scraping

A summary judgment opinion by U.S. District Judge Edward Chen confirms, "The Facebook and Instagram Terms do not bar logged-off scraping of public data; perforce it does not prohibit the sale of such public data." Judge Chen credited Bright Data's argument that, when it was scraping while "logged off" of Facebook or Instagram, it was not then a Facebook or Instagram "user" and thus not bound to the ToS.

Contractual Interpretation

The court found this interpretation consistent with the overall language and purpose of the user provisions of the terms, because the purpose of the relevant sections of the terms was "to prevent account holders who have privileges and access to Meta services from abusing their access to such services." The Court held further that, even if Meta's terms prohibited scraping of data while logged-out of the platforms, once Bright Data terminated its accounts with Meta, Meta could no longer bind Bright Data to that prohibition.

Outcome

One month after a court shut down Meta's attempt to block Bright Data from scraping public web data from its sites, Meta filed a notice to dismiss its claim against Bright Data, which waives Meta's ability to appeal the court's summary judgment opinion.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

21. assistant (2026-06-16T02:46:28.894Z)

I now have the full picture of the key dimension: ToS binds when there's an account/login relationship (hiQ, where hiQ had accounts and agreed to the User Agreement), but may NOT bind a pure logged-out scraper of public data (Bright Data). Let me confirm one detail on the browsewrap/clickwrap enforceability doctrine and grab the broadcaster/sports-league ToS angle to round out third-party sourcing.

22. user (2026-06-16T02:46:39.320Z)

Meta v. Bright Data: Terms of Service and Web Scraping

(1) Why ToS Does NOT Bind Logged-Out Scraping

Judge Chen held that Meta's terms only apply to "users"?defined as account holders. Since Bright Data scraped while logged out, it wasn't "using" the platform as contemplated by the agreement. The court noted: "there is a strong and compelling argument that Bright Data was not 'using' Facebook as contemplated by the Terms when it scraped public data while not logged-in."

(2) User vs. Non-User Distinction

The pivotal evidence involved Meta's own contractual evolution. Meta's 2009 terms explicitly bound "registered member[s]" and "non-subscribing visitors" alike. Meta **deliberately removed** this language in current versions, signaling that only account holders count as "users." This conscious deletion demonstrated that the platform understood how to extend obligations to non-logged-in visitors but chose not to.

(3) Termination and Survival Clauses

After account termination, Meta argued survival clauses perpetually restricted Bright Data's conduct. The court rejected this, applying the principle that "courts should not construe ambiguous writings to create lifetime promises." Survival clauses require reasonable geographic and temporal limits; unlimited restrictions violate California contract law principles against perpetual obligations.

(4) Contrast with hiQ v. LinkedIn

In hiQ, the court initially ruled against LinkedIn's breach-of-contract claims on CFAA grounds. However, on remand, LinkedIn **prevailed** on breach of contract. The Bright Data decision differs by narrowing when ToS actually binds scrapers?specifically excluding logged-out access to public data.

23. user (2026-06-16T02:46:42.026Z)

Web search results for query: "browsewrap clickwrap terms of service enforceability inquiry notice manifestation of assent courts"

Links: [{"title":"Check out this article...Clickwrap Agreements and Legal Enforceability Explained","url":"https://www.upcounsel.com/clickwrap"}, {"title":"3 Key Legal Cases on Clickwrap - TermsFeed","url":"https://www.termsfeed.com/blog/3-key-legal-cases-clickwrap/"}, {"title":"Recent Court Rulings Provide Warnings on the Use of Browsewrap Agreements | Crowell & Moring LLP","url":"https://www.crowell.com/en/insights/client-alerts/recent-court-rulings-provide-warnings-on-the-use-of-browsewrap-agreements"}, {"title":"Clickwrap vs. Browsewrap Agreements and When To Use Them","url":"https://termly.io/resources/articles/browsewrap-vs-clickwrap/"}, {"title":"Recent Court Decisions Shed Light on Enforceability of Electronic Contracts in the U.S. | Insights & Resources | Goodwin","url":"https://www.goodwinlaw.com/en/insights/publications/2022/08/08_10-recent-court-decisions-shed-light"}, {"title":"Clickwrap Agreement Enforceability","url":"https://www.esignglobal.com/blog/legal-enforceability-clickwrap-browsewrap-agreements"}, {"title":"\"Clickwrap\" v. \"Browsewrap\": Recent 9th Circuit Decision Illustrates That Enforceability of Website Terms and Conditions Lies in the Details","url":"https://www.maddinhauser.com/clickwrap-v-browsewrap-recent-9th-circuit-decision-illustrates-that-enforceability-of-website-terms-and-conditions-lies-in-the-details/"}, {"title":"Don't Just Click! Browsewrap Or Clickwrap Agreements For Arbitration Provisions Can Be Enforceable - Liebert Cassidy Whitmore","url":"https://www.lcwlegal.com/news/dont-just-click-browsewrap-or-clickwrap-agreements-for-arbitration-provisions-can-be-enforceable/"}, {"title":"Clickwrap vs Browsewrap Agreements: Enforceability, Consent Methods, and Legal Compliance - Portalatin Business Law Firm","url":"https://contractlawmiami.com/clickwrap-vs-browsewrap-agreements/"}]

Based on the search results, here's what courts consider regarding browsewrap and clickwrap terms of service enforceability:

Key Legal Standards

Courts apply traditional principles of contract law and focus on whether the plaintiffs had reasonable notice of and manifested assent to the clickwrap agreement. Parties must manifest their mutual assent to the terms of the agreement before it can be enforceable.

Manifestation of Assent

Parties traditionally manifest assent by written or spoken word, but they can also do so through conduct, and if a website offers contractual terms to those who use the site and a user engages in conduct that manifests her acceptance of those terms, an enforceable agreement can be formed.

Clickwrap Enforceability

Clickwrap agreements involve presenting users with specified contractual terms on a pop-up screen and requiring the user to click or check a box stating "I agree" in order to proceed, and because they involve affirmative conduct manifesting agreement, courts have routinely found clickwrap agreements enforceable.

Browsewrap Enforceability

Courts are reluctant to enforce browsewrap agreements because users are frequently left unaware that contractual terms were even offered by the company, much less that the user's continued use of a website or app will be deemed to constitute acceptance of those terms.

Notice Requirements

For browsewrap agreements to be enforceable, a browsewrap agreement must be displayed in a font size and format that a reasonably prudent Internet user would have seen it. Additionally, the consumer has 'inquiry notice,' meaning they could have been informed if they had inquired.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

24. assistant (2026-06-16T02:46:45.803Z)

I have comprehensive, well-sourced coverage of all dimensions: the two anchor cases, the user/login distinction that determines whether a ToS binds at all, the clickwrap/browsewrap enforceability doctrine, the YouTube ToS verbatim clauses, the dataset-redistribution escalation, and the DTSA trade-secret standard for owner-recorded data. I have enough to synthesize a thorough answer.

25. user (2026-06-16T02:47:55.423Z)

Structured output provided successfully

26. assistant (2026-06-16T02:48:05.174Z)

Research complete. I've delivered the structured findings via the StructuredOutput tool. Summary of what the research established:

****The core "contract binds when copyright doesn't" mechanism:**** Post-*Van Buren* (2021), the CFAA no longer reaches mere purpose-violations of accessible/public data, so platforms enforce anti-scraping rules through breach-of-contract instead. *hiQ v. LinkedIn* is the proof: the Ninth Circuit twice held scraping public data likely doesn't violate the CFAA, yet LinkedIn still ****won on breach of contract**** (Nov 2022, \$500K settlement) because hiQ had agreed to the User Agreement.

****The two thresholds that decide whether a ToS actually bites:****

1. Account/login or clickwrap "I agree" ? bound (hiQ; any YouTube API/account user). Pure logged-out scraping of public pages with only browsewrap ? may NOT bind at all (*Meta v. Bright Data*, Jan 2024 ? "Terms do not bar logged-off scraping of public data").
2. The ****redistribution step**** (committing a derived dataset to a public repo) is the highest-risk act, since most ToS independently bar "distribute"/commercial reuse.

****The owner-recorded flip:**** No third-party contract to breach ? analysis shifts to trade secret under 18 U.S.C. § 1839, which protects the data as a moat ONLY if kept secret with reasonable measures AND it derives value from not being generally known. Publishing it publicly forfeits that moat ? so it's the owner's strategic publish-vs-protect choice, not anyone else's contract.

All claims are anchored to authoritative sources (the *Van Buren* slip opinion, the Cornell LII statutory text of § 1839, verbatim YouTube ToS, and reputable firm/academic commentary), with India-law and the other separate exposure tracks (copyright, privacy/biometrics, trespass) flagged as caveats.